

TAB 2



Board of Education Report

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File #: Rep-277-22/23, Version: 1

Define and Approve the Nobel Charter Middle School Fencing and Secure Entry System Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

June 13, 2023

Facilities Services Division

Action Proposed:

Define and approve the Nobel Charter Middle School Fencing and Secure Entry System Project (Project) and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The total budget for the Project is \$3,206,822.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement this proposed project, including budget modifications and the purchase of equipment and materials.

Background:

Priorities for the expenditure of capital funding are evaluated to ensure the District's most pressing priorities are being addressed. More than 70 percent of Los Angeles Unified School District (Los Angeles Unified or District) school buildings were built more than 50 years ago, and more than \$50 billion of unfunded school facilities needs have been identified District-wide, and these needs grow every year. As the District's capital needs far exceed available funding, the most pressing unfunded critical needs will continue to be addressed based on an evaluation of known facilities conditions and needs at schools. Projects developed under this category of need, Critical Replacements and Upgrades of School Building/Site Systems and Components, will replace failing building systems that create safety concerns and are disruptive to school operations. Systems in the worst condition, especially those that pose a safety hazard and/or will negatively impact school operations and other building systems if not addressed, will be addressed first.

The proposed Project aligns with these priorities. The Project will provide approximately 2,300 linear feet of wrought iron fencing around the school campus and an Americans with Disabilities Act accessible secure entrance on Tampa Avenue. Construction is anticipated to begin in the first quarter of 2025 and be completed in the third quarter of 2025. Nobel Charter Middle School is located within the boundaries of Canoga Park/Chatsworth Community of Schools, Region North, and Board District 3 (Scott Schmerelson).

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens' Oversight Committee (BOC) at its meeting on May 18, 2023. Pursuant to the Memorandum of Understanding (MOU) between the BOC and the Board of Education (Board), the District provided the BOC with the opportunity to consider the bond funded proposal and make a recommendation to the Board as to whether to approve or disapprove the proposal, prior to presenting the item to the Board for final action. Following discussion, a vote was taken which resulted in 7 ayes, 0 nays, 3 abstentions, and 5 absences. Having fulfilled the requirements under the MOU, and after further review with staff, the proposal will proceed to the Board without a BOC recommendation.

Expected Outcomes:

Staff anticipates the Board of Education will adopt this proposed amendment to the Facilities SEP to define and approve the Project to address critical replacement and upgrade needs. Approval will authorize staff to proceed with the implementation of the proposed Project to improve student health, safety, and educational quality.

Board Options and Consequences:

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds to undertake the proposed Project in accordance with the provisions set forth in Los Angeles Unified local bond measures K, R, Y, Q, and RR. If the proposed action is not approved, Bond Program funds will not be expended, and critical replacement and upgrade needs will remain unaddressed.

Policy Implications:

The proposal is consistent with the Los Angeles Unified's long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in Los Angeles Unified local bond measures.

Budget Impact:

The Project budget is \$3,206,822 and will be funded with Bond Program funds earmarked specifically for critical replacements and upgrades of school building/site systems and components.

The Project budget was prepared based on the current information known and assumptions about the Project scope, site conditions, and market conditions. The Project budget will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of the Project.

Student Impact:

Approval of the Project enables the District to continue our ongoing efforts to undertake facilities improvements that help ensure the approximately 1,940 students attending the school are provided with a safe school environment that promotes teaching and learning.

Equity Impact:

Building components/systems in the worst condition, especially those that pose a safety hazard and/or will negatively impact school operations and other building systems if not addressed, will be addressed first.

Issues and Analysis:

It may be necessary to undertake feasibility studies, site analysis, scoping, and/or due diligence activities on the proposed Project prior to initiating design. As necessary, the Office of Environmental Health and Safety (OEHS) will evaluate the proposed Project in accordance with the California Environmental Quality Act (CEQA) to ensure compliance. If, through the planning and design process, it is determined the proposed Project scope will not sufficiently address the critical needs identified, the Project scope, schedule, and budget will be revised accordingly.

Attachments:

Attachment A - BOC Resolution

Informatives:

None

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Submitted:
05/05/2023

RESPECTFULLY SUBMITTED,



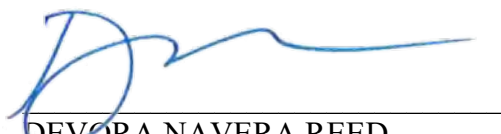
ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

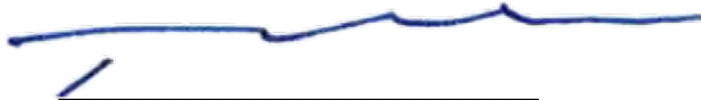
☒ Approved as to form.

APPROVED BY:



MARK HOVATTER
Chief Facilities Executive
Facilities Services Division

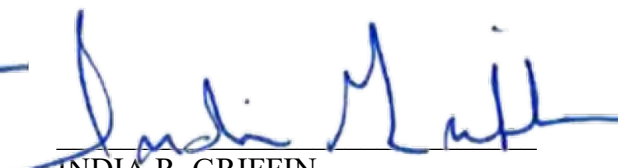
REVIEWED BY:



TONY ATIENZA
Director, Budget Services and Financial Planning

☒ Approved as to budget impact statement.

PRESENTED BY:



INDIA R. GRIFFIN
Director of Facilities Maintenance and Operations

LOS ANGELES UNIFIED SCHOOL DISTRICT

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

Margaret Fuentes, Chair
LAUSD Student Parent
D. Michael Hamner, FAIA, Vice-Chair
American Institute of Architects
Jennifer McDowell, Secretary
L.A. City Mayor's Office
Scott Pansky, Executive Committee
L.A. Area Chamber of Commerce

Neelura Bell
CA Charter School Association
Robert Campbell
L.A. Co. Auditor-Controller's Office
Jeffrey Fischbach
CA Tax Reform Assn.
Chris Hannan
L.A. Co. Federation of Labor AFL-CIO
Hyepin Im
L.A. City Controller's Office
Brian Mello
Assoc. General Contractors of CA
Dr. Clarence Montecarlo
Tenth District PTSA

William O. Ross IV
31st District PTSA
Samantha Rowles
LAUSD Student Parent
Araceli Sandoval-Gonzalez
Early Education Alliance
Dolores Sobalvarro
AARP
Celia Ayala (Alternate)
Early Education Coalition
Chad Boggio (Alternate)
L.A. Co. Federation of Labor AFL-CIO
Connie Yee (Alternate)
L.A. Co. Auditor-Controller's Office

Joseph P. Buchman – Legal Counsel
Burke, Williams & Sorensen, LLP
Lori Raineri and Keith Weaver – Oversight Consultants
Government Financial Strategies Joint Powers Authority

Timothy Popejoy
Bond Oversight Administrator
Perla Zitle
Bond Oversight Coordinator

RESOLUTION 2023-13

BOARD REPORT 277-22/23

RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE NOBEL CHARTER MIDDLE SCHOOL FENCING AND SECURE ENTRY SYSTEM PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN

WHEREAS, District Staff proposes the Board of Education define and approve the Nobel Charter Middle School Fencing and Secure Entry System Project with a budget of \$3,206,822 (Project), as described in Board Report 277-22/23 attached hereto, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein, and authorize the Chief Procurement Officer and/or the Chief Facilities Executive, and/or their designee(s), to execute all instruments necessary to implement the Project; and

WHEREAS, Projects developed under the School Upgrade Program category of need, Critical Replacements and Upgrades of School Building/Site Systems and Components, will replace failing building systems that create safety concerns and are disruptive to school operations; and

WHEREAS, The Project will provide approximately 2,300 linear feet of wrought iron fencing around the school campus and an Americans with Disabilities Act accessible secure entrance on Tampa Avenue; and

WHEREAS, Construction is anticipated to begin in the first quarter of 2025 and be completed in the third quarter of 2025; and

WHEREAS, The Project is consistent with the Los Angeles Unified School District's (Los Angeles Unified or District) long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in Los Angeles Unified local bond measures; and

RESOLUTION 2023-13**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE NOBEL CHARTER MIDDLE SCHOOL FENCING AND SECURE ENTRY SYSTEM PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, District Staff has determined that the Project is necessary to improve student health, safety, and educational quality; and

WHEREAS, the Board of Education's approval of the Project will authorize District Staff to proceed with the expenditure of Bond Program funds to undertake the Project in accordance with the provisions set forth in Los Angeles Unified local bond measures K, R, Y, Q, and RR; and

WHEREAS, District Staff has concluded this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Citizens' Bond Oversight Committee recommends that the Board of Education define and approve the Nobel Charter Middle School Fencing and Secure Entry System Project with a budget of \$3,206,822, and amend the Facilities SEP to incorporate therein, as described in Board Report 277-22/23, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee's website.
3. The District is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District.

ADOPTED on May 18, 2023, by the following vote:

AYES: 7

ABSTENTIONS: 3

NAYS: 0

ABSENCES: 5

Margaret Fuentes
Chair

D. Michael Hamner
Vice-Chair